

HOUSE No. 5284

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 23, 2026.

The committee on Education, to whom was referred the petition (accompanied by bill, House, No. 632) of Kate Lipper-Garabedian and Alice Hanlon Peisch relative to enrollment preferences for high need students at commonwealth charter schools, reports recommending that the accompanying bill (House, No. 5284) ought to pass.

For the committee,

KENNETH I. GORDON.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act furthering enrollment preferences for high need students.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (n) of section 89 of chapter 71 of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended by inserting after the second
3 paragraph the following paragraph:-

4 Subject to regulations promulgated by the board, commonwealth charter schools may
5 voluntarily offer enrollment preferences to certain high needs students, including, but not limited
6 to, low income or economically disadvantaged students, English learners or former English
7 learners, or students with disabilities, and may enroll said students at any time during the school
8 year. Said enrollment preferences shall apply both to students who are admitted through the
9 lottery and students admitted off of the waitlist pursuant to this section.

10 SECTION 2. The board of elementary and secondary education shall promulgate rules
11 and regulations to implement the provisions of this act. At a minimum, such regulations shall
12 define the specific student subgroups that will be eligible for enrollment preferences authorized
13 under Section 1, and the process for implementing said enrollment preferences; provided that

14 students experiencing homelessness and students who have been identified as Students with
15 Emergency Resettlement Status may be included in the list of specific student subgroups that
16 will be eligible for said enrollment preferences.